

**PLJ 2023 Lahore (Note) 141**

*Present:* MASUD ABID NAQVI, J.

IMRAN SHAHZAD--Petitioner

versus

BOARD OF INTERMEDIATE & SECONDARY EDUCATION  
GUJRANWALA through Chairman and 5 others--Respondents

C.R. No. 2069 of 2012, decided on 9.12.2019.

**Specific Relief Act, 1877 (I of 1877)--**

----Ss. 42 & 54--Punjab Universities and Board of Intermediate Education Act, 1950, S. 3(1)--Intermediate examination--Allegation of impersonation--Registration of FIR and disciplinary proceedings were initiated against petitioner--Ex-parte disciplinary proceedings--Disqualification for six examinations and quashment of secondary school certificate result card--Suit for declaration--Decreed--Appeal--Allowed--Challenge to--Although petitioner was acquitted of charge but he did not appear before disciplinary committee despite issuance of notice, consequently, ex-parte proceedings were conducted against him--Criminal proceedings are not barred in presence of departmental proceedings and that departmental and criminal proceedings can proceed simultaneously--The appellate Court has properly appreciated pleadings and has also discussed in detail statements of PW's and DW's on basis of documents exhibited by both sides while dilating upon controversy and thereafter reached at conclusion regarding controversy--Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in impugned judgment and decree passed by appellate Court--Revision petition dismissed. [Para 3 & 5] A, B & C

2015 SCMR 1 *ref.*

*Ch. Abdul Hamid*, Advocate for Petitioner.

*Mr. Ali Masood Hayat*, Advocate for Respondents.

Date of hearing: 9.12.2019.

**ORDER**

Brief facts leading to the filing of instant civil revision are that petitioner/plaintiff filed a suit for declaration with mandatory injunction with the assertions that he appeared in English paper of intermediate examination conducted by the respondents/defendants on 01.05.1999 under roll No. 80128, however, after the examination he came to know that FIR No. 333/2009 dated 05.05.1999 under Section 3(1) of the Punjab Universities and Boards of Intermediate and Secondary Education Act. 1950 as amended *vide* Ordinance-V of 1999 was registered against him at Police Station Satellite

Town Gujranwala on the allegation that in place of the petitioner some other person appeared in the examination therefore he committed impersonation. The respondents/defendants also initiated disciplinary proceedings against the petitioner and he was disqualified for six examinations and the result card of secondary school certificate of the petitioner/plaintiff was also cancelled. Hence, the suit. The suit was contested by the defendants/respondents and out of divergent pleadings of the parties, issues were framed by the learned Trial Court and after recording evidence of the parties, the learned Trial Court *vide* judgment dated 31.10.2011 decreed the suit. Feeling aggrieved, defendants/respondents filed an appeal and learned Additional District Judge *vide* judgment & decree dated 24.05.2012 accepted the appeal and dismissed the suit. Being dissatisfied, the petitioner/plaintiff has filed the instant civil revision and challenged the validity of the judgment and decree passed by the learned appellate Court.

2. I have heard the arguments of learned counsel for the parties and perused the available record as well as have minutely gone through the impugned judgment and decree.

3. The petitioner/plaintiff was proceeded against on the allegation that some other person appeared in the English paper of intermediate examination in place of petitioner/ plaintiff on the basis of fabricated roll number, therefore petitioner committed impersonation. This fact is very much clear from Exh.D.2/copy of center slip and Exh.D.3/ examination center slip which show that photographs and serial number of the form including attestation of these two documents are different. The petitioner/plaintiff committed impersonation for which criminal case was got registered against him under the Ordinance *ibid* and disciplinary proceedings were also initiated against him. Although petitioner/plaintiff was acquitted of the charge but he did not appear before the disciplinary committee despite issuance of notice, consequently, ex-parte proceedings were conducted against him and disciplinary committee disqualified the petitioner for six examinations and also recommended for quashing the secondary school certificate *vide* order dated 28.8.1999. The petitioner filed an appeal before the Appeal Committee of BISE Gujranwala, however the same was dismissed *vide* order dated 18.12.1999. Thereafter, on the recommendation of disciplinary committee, the result quashment committee on 22.12.2000 recommended quashment of secondary school certificate of the petitioner and the Board in its meeting held on 22.03.2001 approved the same, hence, secondary school certificate of the petitioner was also cancelled. The plea raised by the petitioner that criminal and disciplinary proceedings cannot proceed simultaneously is misconceived because it is settled law that criminal proceedings are not barred in presence of departmental proceedings and that departmental and criminal proceedings can proceed simultaneously. The learned appellate Court has properly appreciated the pleadings and has also discussed in detail statements of PW's and DW's on the basis of documents exhibited by both sides while dilating upon the controversy and thereafter reached at the conclusion regarding the controversy. Hence, the findings of learned appellate Court are maintained/upheld.

4. With respect to interference in the findings of appellate Court where there is inconsistency between the trial Court and appellate Court, the Hon'ble Supreme Court of Pakistan in a case reported as *Amjad Ikram vs. Mst. Asiya Kausar* (2015 SCMR 1) held that:

*“Even otherwise, in case of inconsistency between the learned and the appellate Court, the latter must be given preference in the absence of any cogent reason to the contrary, as has been held by this Court in judgements reported as Madan Gopal and 4 other vs Maran Bipari and 3 others (PLD 1969 SC 617 and Mohammad Nawaz through LRS vs Haji Mohammad Baran Khan through LRS and others (2013 SCMR 1300)*

5. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgment and decree passed by the learned appellate Court, therefore, this civil revision is **dismissed**.

(Y.A.) Civil Revision dismissed